



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

HB 2074: partial-birth abortions; mandatory reporting

FINK FLOOR AMENDMENT

1. Strikes language permitting an exception for partial-birth abortions when preformed to save the life of a mother.

ADDITIONAL COW
FINK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2074
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3603.01, Arizona Revised Statutes, is amended
3 to read:

4 13-3603.01. Partial-birth abortions; classification; civil
5 action; definitions

6 A. Any physician who knowingly performs a partial-birth abortion
7 and thereby kills a human fetus is guilty of a class 6 felony and shall be
8 fined under this title or imprisoned not more than two years, or both.

9 ~~[B. This section does not apply to a partial-birth abortion that is~~
10 ~~necessary to save the life of a mother whose life is endangered by a~~
11 ~~physical disorder, physical illness or physical injury, including a~~
12 ~~life-endangering physical condition caused by or arising from the~~
13 ~~pregnancy itself.]~~

14 ~~[C.]~~ [B.] The father of the fetus if married to the mother at the
15 time she receives a partial-birth abortion procedure and the maternal
16 grandparents of the fetus if the mother is not at least eighteen years of
17 age at the time of the partial-birth abortion may bring a civil action to
18 obtain appropriate relief unless the pregnancy resulted from the
19 plaintiff's criminal conduct or the plaintiff consented to the
20 partial-birth abortion. Relief pursuant to this subsection includes the
21 following:

22 1. Money damages for all injuries, psychological and physical,
23 resulting from the violation of this section.

24 2. Statutory damages in an amount equal to three times the cost of
25 the partial-birth abortion.

26 ~~[D.]~~ [C.] AN INDIVIDUAL WHO IS EMPLOYED BY, CONTRACTS WITH OR
27 VOLUNTEERS IN A MEDICAL FACILITY AND WHO HAS DIRECT KNOWLEDGE THAT A

1 PARTIAL-BIRTH ABORTION IS BEING PERFORMED OR HAS BEEN PERFORMED SHALL
2 IMMEDIATELY REPORT THAT KNOWLEDGE TO THE COUNTY ATTORNEY IN THE COUNTY
3 WHERE THE PROCEDURE OCCURS OR OCCURRED. THE REPORT SHALL INCLUDE ALL
4 IDENTIFYING INFORMATION THAT IS KNOWN TO THE REPORTING INDIVIDUAL
5 REGARDING THE PHYSICIAN AND MEDICAL FACILITY INVOLVED. AN INDIVIDUAL WHO
6 FAILS TO REPORT AS PRESCRIBED IN THIS SUBSECTION IS GUILTY OF A CLASS 6
7 FELONY.

8 D. ~~[F.]~~ This section shall not subject a woman upon whom a
9 partial-birth abortion is performed to any criminal prosecution or civil
10 liability.

11 ~~[F.] [F.] A defendant who is accused of an offense under this section~~
12 ~~may seek a hearing before the Arizona medical board if the defendant is~~
13 ~~licensed pursuant to title 32, chapter 13 or the Arizona board of~~
14 ~~osteopathic examiners in medicine and surgery if the defendant is licensed~~
15 ~~pursuant to title 32, chapter 17 on whether the physician's conduct was~~
16 ~~necessary to save the life of the mother whose life was endangered by a~~
17 ~~physical disorder, physical illness or physical injury, including a~~
18 ~~life-endangering physical condition caused by or arising from the~~
19 ~~pregnancy itself. The findings on that issue are admissible, in the~~
20 ~~court's discretion, on that issue at the trial of the defendant. On a~~
21 ~~motion of the defendant, the court shall, in its discretion, delay the~~
22 ~~beginning of the trial for not more than thirty days to permit a hearing~~
23 ~~to take place.]~~

24 ~~F.] [G.] [E.]~~ For the purposes of this section:

25 1. "Partial-birth abortion" means an abortion in which the person
26 performing the abortion does both of the following:

27 (a) Deliberately and intentionally vaginally delivers a living
28 fetus until, in the case of a headfirst presentation, the entire fetal
29 head is outside the body of the mother or, in the case of breech
30 presentation, any part of the fetal trunk past the naval is outside the
31 body of the mother for the purpose of performing an overt act that the
32 person knows will kill the partially delivered living fetus.

33 (b) Performs the overt act, other than completion of delivery, that
34 kills the partially delivered living fetus.

35 2. "Physician" means a doctor of medicine or a doctor of osteopathy
36 who is licensed pursuant to title 32, chapter 13 or 17 or any other
37 individual legally authorized by this state to perform abortions. Any
38 individual who is not a physician or who is not otherwise legally
39 authorized by this state to perform abortions but who nevertheless
40 directly performs a partial-birth abortion shall be subject to this
41 section.

42 Sec. 2. Legislative intent

43 A. The legislature finds that partial-birth abortion is never
44 medically necessary to preserve the life of a mother. Advances in modern
45 medicine have eliminated any circumstance in which intentionally

1 delivering and killing a living child partway through birth is required to
2 save a woman's life. The previous exception for so-called life of the
3 mother cases created a false loophole, exploited by abortion providers to
4 disguise elective procedures as emergencies. That exception is therefore
5 eliminated.

6 B. The legislature further finds that accountability cannot rest
7 solely on the physician who performs the procedure. A physician who
8 commits this crime has no incentive to self-report. For that reason, all
9 medical personnel, including doctors, nurses, technicians and volunteers,
10 who have direct knowledge of a partial-birth abortion are required to
11 report that information to law enforcement. Failure to report is itself
12 an offense, because silence in the face of this brutality enables
13 lawbreaking and shields perpetrators from justice.

14 C. The legislature rejects the notion that a woman should be exempt
15 from all civil or criminal liability in relation to a partial-birth
16 abortion. While compassion is due to women in crisis, the gravity of this
17 procedure requires a legal framework that recognizes the reality: a child,
18 partially delivered, is deliberately killed. Allowing such acts without
19 accountability devalues the life of the [unborn] child and
20 undermines the very foundation of equal protection under the law.

21 Enroll and engross to conform

22 Amend title to conform

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